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Case Number: 25NWCV04541 Hearing Date: July 28, 2026 Dept: L

MARY ODA,

et al. vs LA MIRADA POST ACUTE, LLC, et al.

CASE NO.: 25NWCV04541

HEARING: July 28, 2026 @ 9:30

a.m.

Add-On

TENTATIVE ORDER

Defendants La Mirada Post

Acute, LLC and Sun Mar Management Services' Motion to Compel Arbitration and Stay Civil Action is GRANTED.

Defendants to give notice.

Background

This is an action for elder abuse. On December 23, 2025, Plaintiff Mary Oda, by and through her Guardian Ad Litem, Carol Shimizu, ("Plaintiff") filed this action against Defendants La Mirada Post Acute, LLC, Sun Mar Management Services, Core Analytics Radiology, Inc., Brian Yue, M.D., Linda Anne Hughes, M.D., Flex Telerad, LLC, and Does 1 to 50. The Complaint stems from Plaintiff's residency at La Mirada Post Acute, LLC, a skilled nursing facility. The Complaint alleges that due to Defendants' negligence and neglect, Plaintiff suffered various injuries, some of which went

undiagnosed. The Complaint alleges the following causes of action: 1) Elder Abuse and Neglect (against Defendants La Mirada Post Acute, LLC and Sun Mar Management Services), 2) Violation of Health and Safety Code § 1430(b) (against Defendant La Mirada Post Acute, LLC), and 3) Negligence (against all Defendants).

Defendants La Mirada Post Acute, LLC and Sun Mar Management Services (hereinafter, "Defendants") now move to compel arbitration and stay the action.

Legal Standard

Parties may be compelled to arbitrate a dispute upon the court finding that: (1) there was a valid agreement to arbitrate between the parties; and (2) said agreement covers the controversy or controversies in the parties' dispute. (Code Civ. Proc., § 1281.2; see also *Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.) A party petitioning to compel arbitration has the burden of establishing the existence of a valid agreement to arbitrate and the party opposing the petition has the burden of proving, by a preponderance of the evidence, any fact necessary to its defense. (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 356-57.)

"If a court of competent jurisdiction . . . has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc., § 1281.4.)

Discussion

i.

Existence of an Arbitration Agreement

Under both the Federal Arbitration Act and California law, Arbitration Clauses are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (*Winter v. Window Fashions Professions, Inc.* (2008) 166 Cal.App.4th 943, 947.) The

party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. (Code of Civ. Proc., § 1281.2.) In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute, and general principles of California contract law help guide the court in making this determination. (Mendez v. Mid-Wilshire Health Care Center (2013) 220 Cal.App.4th 534, 541.)

With respect to the moving party's burden to provide evidence of the existence of an agreement to arbitrate, it is generally sufficient for that party to present a copy of the contract to the court. (See Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218; see also Cal. Rules of Court, rule 3.1330 ["A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim, or a copy must be physically or electronically attached to the petition and incorporated by reference"].) Once such a document is presented to the court, the burden shifts to the party opposing the motion to compel, who may present any challenges to the enforcement of the agreement and evidence in support of those challenges. [Citation.] (Baker v. Italian Maple Holdings, LLC (2017) 13 Cal.App.5th 1152, 1160.)

Defendants move to compel arbitration under an arbitration agreement ("Agreement") executed on May 11, 2024 in connection with Plaintiff's admission. (Le Decl., ¶ 7, Exh. A.) The Agreement reflects resident's name as "Mary Oda" and bears a signature on the line of the "Legal Representative/Agent of Resident and Individually." (Le Decl., ¶ 7, Exh. A.) The Agreement was also electronically signed on behalf of the facility by Kris Kathleen Virata. (Le Decl., ¶ 8, Exh. A.) Defendants note that the facility had previously operated under the name "Mirada Hills Rehabilitation and Convalescent" until April 2022, which is reflected in the Agreement. (Le Decl., ¶¶ 10-11, Exh. A.) Defendant clarify that the reference in the Arbitration Agreement to "Mirada Hills Rehabilitation and Convalescent" refers to the same facility that, at the time of Plaintiff's admission, was operating as La Mirada Post Acute, LLC dba Sunny Hills Post Acute. (Le Decl., ¶ 12.) The Agreement was maintained in Plaintiff's admission records in the ordinary course of Defendants' business. (Le Decl., ¶ 9.)

The Agreement contains the following provisions, in relevant part:

- Article

I (Medical Malpractice Claims): The Agreement provides that “any dispute as to medical malpractice, including whether medical services rendered under the contract were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered, shall be determined by submission to arbitration rather than by lawsuit or court process, except as California law provides for judicial review of arbitration proceedings.” By entering into the Agreement, the parties “are giving up their constitutional right to have such disputes decided in a court of law before a jury.

- Article

II (Other Claims): The Agreement applies to disputes between the Resident and the Facility, “the Resident’s heirs and/or agents and [the Facility’s] owners, investors, operators, officers, directors, administrators, staff, employees, agents, administrative services company, and related entities and individuals. . .[providing services relating to the Resident’s care].” Article II expressly includes “any action for injury or death arising from negligence, torts, intentional torts, and/or statutory causes of action [...].”

- Article

III (Scope of Agreement): The Agreement “shall be binding on any dispute” and “is binding on all parties, including the Resident’s representatives, executors, family members, and heirs who bring claims individually or in a representative capacity.”

- Article

IV (Delegation of Authority): The Agreement provides that “the arbitrator, and not any federal, state, or local court or agency, shall resolve disputes regarding the making, execution, enforceability, voidability, revocability, unconscionability, severability, scope, arbitrability, interpretation, waiver, duress, preemption, or any other defense to the validity or enforceability of the Agreement, as well as the parties’ underlying disputes [...].”

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Article VII (Applicable Law): The Agreement states that, because Plaintiff’s admission involves interstate commerce, it “is to be governed by the Federal Arbitration Act (9 U.S.C. §§ 1-16) and the procedural rules set forth in the Federal Arbitration Act shall govern any and all arbitration proceedings, including any petition to compel arbitration.”

(Le Decl., ¶ 7, Exh. A.)

Further, above the signature lines, the Agreement contains notice in bold that “by signing this contract you are agreeing to have any issue of medical malpractice decided by a neutral arbitration and you are giving up your right to a jury or court trial.” (Le Decl., ¶ 6, Exh. A.)

Defendant argues that Plaintiff’s claims fall squarely within the scope of the arbitration agreement. The Agreement covers disputes regarding medical services and claims for negligence, torts, and statutory causes of action arising from the service provided by the facility. Further, all parties, including the resident’s representatives, executors, family members, and heirs who bring claims individually or in a representative capacity are bound by the Agreement.

In opposition, Plaintiff primarily argues that Defendant has failed to demonstrate a valid agreement to arbitrate exists. Specifically, Plaintiff argues that, at all relevant time, Mary Oda 1) lacked capacity to contract, and 2) lacked capacity to authorize anyone to sign an arbitration agreement on her behalf. Plaintiff offers the Declaration of Carol Shimizu to prove that Plaintiff lacked capacity at all relevant times. Ms. Shimizu declares that she “personally cared for Mary Oda on a daily basis for well over a year before Mary Oda’s admission and observed that Mary Oda suffered from and had been diagnosed with dementia, experienced hallucinations and episodes of severe confusion and delusion, depended entirely on her daughters for her medications, meals, hygiene, mobility, and medical decisions, and was so habitually compliant that she would sign or agree to anything placed before her without understanding it.” (Opp., 5:24-28; Shimizu Decl., ¶¶ 3-14.)

Thus, Plaintiff argues that Mary Oda lacked capacity to contract pursuant to Probate Code sections 811 and 812, comparing this case to *Algo-Heyres v. Oxnard Manor LP* (“Oxnard Manor”) (2023) 88 Cal. App. 5th 1064. Plaintiff admits that “the alleged agreement was signed by one of Mary Oda’s adult daughters” (Opp., 6:15-16), but that Defendants have presented no evidence that she designated (or had the capacity to designate) any person as her agent.

In reply, Defendants argue that

Plaintiff gave her daughter ostensible authority to sign the Agreement. Ostensible authority may be shown through the principal's failure to intervene. Defendants argue that they need not prove that Plaintiff expressly designated someone to sign the Agreement. The Declaration of Carol Shimizu demonstrates that Plaintiff's daughters were involved in the care of and decision-making for Plaintiff. Thus, it may be implied that Plaintiff's eldest daughter, Ms. Ueda, had ostensible authority to sign the Agreement on behalf of Plaintiff.

The Court initially finds that the Agreement's scope covers Plaintiff's medical malpractice and other statutory claims. The Court thus addresses whether a valid agreement to arbitrate exists.

The Court finds that Defendant has met its initial burden by attaching a copy of the Agreement, verified by Defendants' Director of Admissions and custodian of records, Wendy Le. (See Le Decl., ¶ 7, Exh. A.) On May 11, 2024, the Agreement was signed by Facility Representative Kris Kathleen Virata, on behalf of Mirada Hilla Rehabilitation and Convalescent, and identifies the Resident as Mary Oda. (Ibid.) Ms. Le declares that Mirada Hilla Rehabilitation and Convalescent refers to the subject facility. (Le Decl., ¶¶ 10-12.) In place of a resident signature, at the end of the Agreement, there are signatures under the following statement: "By virtue of Resident's consent, instruction and/or durable power of attorney, I hereby certify that I am authorized to act as Resident's agent in executing and delivering of this arbitration agreement. I acknowledge that the Facility is relying on this representation." (See Le Decl., ¶ 7, Exh. A.)

The Court next addresses Plaintiff's argument that Mary Oda lacked capacity to contract or to designate any agent to sign on her behalf. The Court provides an overview of Oxnard Manor LP, *supra*, 88 Cal.App.5th 1064, cited by Plaintiff. In that case, the issue was whether the plaintiff, a resident of a skilled nursing facility, had the capacity to consent to arbitrate and waive his right to a jury trial on claims for elder abuse and other torts. (Id. at p. 1067.) The Court of Appeal considered medical records from weeks prior to the plaintiff's admission to the facility, medical records from the defendant admitting facility, and a declaration of the plaintiff's son regarding his condition shortly before and after the day the agreement was signed. (Id. at pp. 1067-1069.) The Court of Appeal applied Probate Code sections 810 to 812 in reasoning that substantial evidence supported the trial court's determination that 1) plaintiff was not competent

to enter into an arbitration agreement, and 2) defendant did not meet its burden to establish a valid agreement. (Id. at pp. 1070-1072.)

Specifically, the Court of Appeal found the following: “The trial court could reasonably infer from the evidence, including [plaintiff’s] inability to recognize his wife or granddaughter, failure to respond to questions about his care, inability to understand speech, and ability to respond to only simple questions or commands, that his deficits ‘significantly impair[ed]’ his ‘ability to understand and appreciate the consequences’ of waiving his right to trial. (Prob. Code, § 811, subd. (b); see id., § 812.)” (Id. at p. 1072.)

“For purposes of this part, there shall exist a rebuttable presumption affecting the burden of proof that all persons have the capacity to make decisions and to be responsible for their acts or decisions.” (Prob. Code, § 810, subd. (a).) “A judicial determination that a person is totally without understanding, or is of unsound mind, or suffers from one or more mental deficits so substantial that, under the circumstances, the person should be deemed to lack the legal capacity to perform a specific act, should be based on evidence of a deficit in one or more of the person’s mental functions rather than on a diagnosis of a person’s mental or physical disorder.” (Prob. Code, § 810, subd. (c).) Probate Code section 811 provides a list of such mental functions.

Firstly, in contrast to Oxnard

Manor, the issue here is not whether Plaintiff lacked capacity to contract or to sign the Agreement. Rather, the pertinent argument is that Plaintiff lacked the capacity to designate Jennifer Ueda, Plaintiff’s eldest daughter, as her agent in signing the Agreement. The Court notes that Plaintiff admits in the opposition that “the alleged agreement was signed by one of Mary Oda’s adult daughters.” (Opp., 6:15-16.) Ms. Shimizu declares that “[her] sister Jennifer signed a document during my mother’s admission [...]” (Shimizu Decl., ¶ 17.)

The Court finds that the

Declaration of Carol Shimizu, alone, is insufficient to demonstrate that Plaintiff lacked capacity to designate Jennifer Ueda (or any person) as her agent. Unlike in Oxnard Manor, where the plaintiff provided extensive medical records regarding the plaintiff’s capacity in the period leading up to the signing of the agreement (Oxnard Manor LP, supra, 88 Cal.App.5th at pp. 1067-1069), here, Plaintiff only provides a single declaration from

Plaintiff's daughter. There are no medical records to corroborate Ms. Shimizu's observations, and Ms. Shimizu is not qualified to testify as to Plaintiff's cognitive function.

The Court agrees with Defendants that Plaintiff's eldest daughter acted as Plaintiff's agent in signing the Agreement on her behalf. As noted by Defendants, the Declaration of Carol Shimizu suggests that Plaintiff, through her conduct, authorized her daughters to make decisions on her behalf such that they had ostensible agency.

"[A] person who is authorized to act as the patient's agent can bind the patient to an arbitration agreement. . . Even when there is no written agency authorization, an agency relationship may arise by oral consent or by implication from the conduct of the parties. However, an agency cannot be created by the conduct of the agent alone; rather, conduct by the principal is essential to create the agency. Agency can be. . .founded on ostensible authority, that is, some intentional conduct or neglect on the part of the alleged principal creating a belief in the minds of third persons that an agency exists, and a reasonable reliance thereon by such third persons. The principal must in some manner indicate that the agent is to act for him, and the agent must act or agree to act on his behalf and subject to his control. Thus, the formation of an agency relationship is a bilateral matter. Words or conduct by both principal and agent are necessary to create the relationship."

(Flores v. Evergreen at San Diego, LLC (2007) 148 Cal.App.4th 581, 587, internal quotations and citations omitted.)

Ms. Shimizu declared that she and her sisters divided Plaintiff's care on a set weekly rotation and that Plaintiff "depended on [them] for nearly every activity of daily living." (Shimizu Decl., ¶ 4.) Ms. Shimizu states that Plaintiff was not able to make medical or financial decisions and that she remained "noncombative and extremely agreeable," implying that her and her sisters made such decisions on her behalf with Plaintiff's consent. (Shimizu Decl., ¶¶ 10-12.) Thus, the Court finds that it is reasonable to conclude that Plaintiff's daughters were authorized to act on her behalf, including in signing the Agreement. Pursuant to the explicit terms of the Agreement, the signer indicated that they were "certified to act as Resident's agent," and acknowledged that "the Facility is

relying on this representation.” (Le Decl., ¶ 7, Exh. A.)

In consideration of the Declaration of Carolyn Shimizu, the admission by Plaintiff that her eldest daughter signed the Agreement, and the explicit terms of the Agreement, the Court finds that a valid arbitration agreement exists.

ii.

Application of Code of Civil Procedure § 1281.2(c)

In the opposition, Plaintiff further argues that a court has discretion to deny arbitration where additional parties to the action are not subject to arbitration agreement and multiple proceedings might result in conflicting rulings, citing Code of Civil Procedure section 1281, subdivision (c). Here, Plaintiff alleges causes of action against various other parties that are not parties to the Agreement, and there is a risk of conflicting rulings of the claims between Plaintiff and Defendants are compelled to arbitration.

In the reply, Defendants argue that Code of Civil Procedure section 1281, subdivision (c) is preempted by the Federal Arbitration Act (FAA) where the parties explicitly agree that the FAA applies.

In *Victrola 89, LLC v. Jaman Properties 8 LLC* (“*Victrola*”) (2020) 46 Cal.App.5th 337, the appellate court found that, where the subject arbitration agreement stated that “[e]nforcement of this agreement to arbitrate shall be governed by the Federal Arbitration Act,” the parties intended to incorporate the FAA with respect to enforcing the arbitration provision. (Id. at p. 346.) The *Victrola* court further held that, if the parties’ agreement to arbitrate explicitly references “enforcement” under the FAA, the trial court may not apply Code of Civil Procedure section 1281.2, subdivision (c) to deny enforcement of the arbitration agreement. (Id. at pp. 347-348.)

Much like *Victrola*, here, the Agreement states that it “is to be governed by the Federal Arbitration Act (9 U.S.C. §§ 1-16) and the procedural rules set forth in the Federal Arbitration Act shall govern any and all arbitration proceedings, including any petition to compel

arbitration.” (Le Decl., ¶ 7, Exh. A.) Where the enforcement of the arbitration agreement is governed by the FAA, the Court has no discretion to deny the motion under Code of Civil Procedure section 1281.2, subdivision (c).

Conclusion

Accordingly, Defendants’ Motion to Compel Arbitration and Stay Civil Action is granted.